

Approved as to
form only:
Alan
Date: 7/30/19

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 AND 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AMENDING SECTION 1.4.4 AND 5.1.4 OF THE UDC TO CLARIFY DEFINITIONS FOR ENTERTAINMENT AND RECREATION LAND USES; TO CREATE A NEW ENTERTAINMENT AND RECREATION—OTHER LAND USE; AND TO ALLOW THESE USES IN VARIOUS ZONING DISTRICTS AS ADMINISTRATIVE, CONDITIONAL OR PRINCIPAL PERMITTED USES.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendments that are the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of these text amendments is to clarify the types of activities and venues or facilities that are included within the land use definitions of indoor and outdoor entertainment and recreation activities; to establish a new “Entertainment, Amusement, Recreation Services—Other” land use category and define the type of activities, venues and facilities included therein; and to establish the zoning districts that the various entertainment and recreation land uses would be permitted as Administrative, Conditional or Principal permitted uses.

Section 3. That the intent of these text amendments is to facilitate the reuse and redevelopment of infill properties, to facilitate the establishment of entertainment and recreation activities and venues that appeal to residents’ modern cultural tastes; and to “legalize” existing entertainment and recreation activities and venues that are long-established in zoning districts that currently may not allow them.

Section 4. That these text amendments are not regarding a specific parcel or a change in boundary due to a specific development proposal, changed circumstances for any specific property or its surrounding area, or changed public policy with respect to long-range plans.

Section 5. That sub-sections 1.4.4.b and c and 5.1.4, Table 5-1 are amended to read as follows [text additions are noted by underscoring text and deletions are noted by strike-through text]:

Article 1 Section 1.4.4.c Service Uses.

Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered ~~as a business~~. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered ~~as a business~~. Examples include race tracks, driving ranges, music performance venues, or other outdoor entertainment venues. ~~similar grounds.~~

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, ~~or~~ banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services--Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as off-track betting, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Section 1.4.4.b. Civic Uses.

Developed Athletic Field or Stadium: A facility for active outdoor recreation and organized sports which ~~is operated as a business or which~~ includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

Section 5.1.4, Table 5-1 Zoning District Uses [next 3 pages].

Table 5-1: Zoning District Uses

Zoning Districts ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LJ	HI	P	MUR	MUB	MUE	AD	PUD	M	AHR	CHR
▼ Category of Uses / Specific Uses																							
Residential Uses																							
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P						
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P						
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P						
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C					
Dormitories					C	A						P				P	P						
Multi-dwelling Building ("Apartment")					C	PC		PC	P							PC	P	P					
Live/Work					C	P		C	A	P		P				P	P	P					
Mixed-use Dwelling										P		P				P	P	P					
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A						
Urban Loft Building									C	P		C				C	P						
Manufactured housing parks		C		C	C	C																	
Civic Uses																							
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A					
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A					
Cemeteries	A									A	A	P	C		C	A	A	A					
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A					
Educational facilities											P	P			P		A	A					
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A					
Developed Athletic Field or Stadium											C		C		C		C	C					
Service Uses																							
Service Business - Limited										P	P	P				A	P	P					
Service Business - General										C	P	P				C	C						
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P					
Animal Care - Kennel	P	C									P		P										
Animal Care – Hospital / Clinic	C	C								C	P	C					C						
Child Care, In Home - Minor	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P					
Child Care, In Home - Major	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P					
Child Care, Center - Minor	A	C	A							P	P	P				C	P	P					
Child Care, Center - Major	C	C	C							P	P	P					P	P					
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P					
Planned District - uses subject to a development plan																							
Federal Property - No City authority over uses																							
Overlay District - uses subject to base zoning district																							
Overlay District - uses subject to base zoning district																							

Table 5-1: Zoning District Uses

Zoning Districts ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LJ	HI	P	MUR	MUB	MUE	AD	PUD	M	AHR	CHR
▼ Category of Uses / Specific Uses																							
Services Uses (cont.)																							
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C					
Entertainment, Venue(1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C					
Entertainment, Amusement, Recreation--Other	C	C	C								C	C	C	C	C		C	C					
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P					
Lodging, Hotel / Motel											P	P					P	P					
Medical Care, Clinic										P	P	P					P	P					
Medical Care, Office										P	P	P					P	P					
Medical Care, Hospital															P			P					
Storage, Personal											A	A					A	A					
Storage, Park											C		P	P				C					
Storage, Yard													C	P									
Employment Uses																							
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P					
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P					
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P					
Office – Major Office Complex (>20K)											P	P	P	P			P	P					
Commercial Uses																							
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P					
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P					
General Retail (5K - 25K)											P	P	P				P	A					
Large-scale Retail (25K - 100K)											P	P	P				P	C					
Warehouse Retail (> 100K)											P	P	P				P						
Grocery Store <45K										P	P	P	P				P	P					
Supermarket > 45K											P	P	P				P	C					
Outdoor Sales, Limited										A	P	A				A	A	A					
Outdoor Sales, Seasonal										C	A	C				C	C	C					
Outdoor Sales, Event or Display Area										C	A	C				C	C	C					
Outdoor Sales											C		C	C			C						
Bars and liquor stores										C	C	P			A		C	C	P				
Automobile Service Repair										C	P	C	P	P			C	C					
Automobile Service Station - Limited										C	P	C	P	P			C	C	P				
Automobile Service Station - General											P	C	P	P			C						
Planned District - uses subject to a development plan																							
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▼ Category of Uses / Specific Uses																							
Commercial Uses (cont.)																							
Automobile Service Station – Large-scale											C		C	P									
Food Service – Limited (under 2K)										P	P	P				P	P	P	P				
Food Service – general (2K – 4K)										C	P	P					P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P					
Industrial Uses																							
Limited Industrial										A	A	P	P	P	P	A	P	P					
Moderate Industrial												C	P	P			C	P					
General Industrial													C	P									
Industrial														C									
Limited Outdoor Storage													P	P	C			A					
Outdoor Storage													C	P				C					
Impoundment Yards													P	P			C	C					
Salvage yards													C	C									
Junk yards														C									
Pet crematory													C										
Air cargo terminals																			P				
Aircraft sales, repair, service, storage and relating uses																			P				
Railroad yards and maintenance buildings													P										
Public Service Uses																							
Commercial and Public Parking Facility												P			P		P	P					
Government Facility										P	P	P	P	P	P	P	P	P	P				
Military																			P				
Recycling Services											C		P	P			C	C					
Transportation facilities											C		P	P	P				P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A				
Agriculture Uses																							
General Agriculture	P																		P				
Limited Agriculture	P	P																	P				
Agricultural equipment or product sales	C																						
Commercial stables, arenas, and show barns	C	C																					
Nurseries, landscaping		C																					
Work Camps		C																					

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district

Section 6. That the aforementioned Sections of the UDC are hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle